

Ex.P.1680/2023

DHR and his advocate are present.

2. The Advocate for JDR filed IA No.11 u/sec.151 of CPC to re-open the case for hearing on IAs pending and also filed IA No.12- adjournment application.

3. Heard both side, perused both applications.

4. On previous date, this Court has posted the case for further hearing on IA No.5 & 6 and objections to IA No.10. In view of the same, re-opening of case from orders on IA No.5 & 6 does not arise, hence both applications filed by the JDR are rejected.

5. IA No.5 & 8 are filed by the JDR under Order 21 Rule 29 R/w 151 of CPC to stay the further proceedings of this Execution Petition till disposal of O.S F.R.No.1537/2024. The said suit is still not registered and it is stated to be pending under FR Number. Hence, only because, the suit is filed by the present JDR, the proceedings of this Execution Petition cannot be stayed. The JDR has not at all made out a case to stay the proceedings of this petition and accordingly, said IA is rejected.

6. IA No.6 is filed by the JDR u/sec.151 of CPC seeking permission to file application under Order 8 Rule 1(3) r/w section 151 of CPC and IA No.7 is filed under Order 8 Rule 1(3) of CPC seeking permission to produce one document. Under these applications, the JDR is intending to produce the xerox copy of unnumbered plaint. But, the said suit is not at all registered before CCH-1. Hence, both applications

does not survive for consideration. Accordingly, both applications are rejected.

7. The decree was passed by this Court in A.S.No.164/2016 dated 21.01.2023 directing the defendant to hand over the vacant possession of the suit property within 3 months from the date of judgment. Already the said time is over.

8. The suit filed by the present JDR in O.S.No.2889/2023 to declare award dated 05.07.2016 passed by Arbitrator is not binding on him and to declare the judgment and decree dated 21.01.2023 is not binding on the plaintiff was dismissed by XVIII Addl.City Civil Judge by rejecting the plaint under dated 28.11.2023.

9. The RFA No.58/2024 filed by the JDR as against the said decree was pleased to dismiss by the Hon'ble High Court of Karnataka by order dated 24/01/2024.

10. The JDR has not produced any stay order to show that the judgment and decree passed by this Court in A.S.No.164/2016 is stayed by Appellate Court.

11. The DHR has to enjoy the fruits of the decree. It appears that the JDR has filed several applications only in order to drag on the matter. Hence, I proceed to pass the following;

ORDER

Issue possession delivery warrant in favour of the DHR with respect to suit property through special bailiff and with the

help of jurisdictional police. The DHR, who is present before the Court shall assist the bailiff while executing the decree.

Call on 14.06.2024.

(Chinnannavar Rajesh Sadashiv)
XVIII Additional City Civil Judge,
Bengaluru.